

HOUSE No. 964

The Commonwealth of Massachusetts

PRESENTED BY:

Richard M. Haggerty

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting responsible end-of-life management for electric and hybrid vehicle batteries.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Richard M. Haggerty</i>	<i>30th Middlesex</i>	<i>1/17/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>5/7/2025</i>

HOUSE No. 964

By Representative Haggerty of Woburn, a petition (accompanied by bill, House, No. 964) of Richard M. Haggerty relative to end-of-life management for electric and hybrid vehicle batteries. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting responsible end-of-life management for electric and hybrid vehicle batteries.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 21A of the general laws is hereby amended by adding at the end
2 thereof the following new section:

3 Section 29. (a) As used in this section, the following words shall have the following
4 meanings:

5 “Battery” means a device consisting of one or more electrically connected
6 electrochemical cells which is designed to receive, store, and deliver electric energy.

7 "Vehicle traction battery" means a battery with the primary intended purpose to supply
8 power to propel an electric or hybrid vehicle.

9 “Battery provider” means any of the following:

10 (1) A person or entity that initially sells, offers for sale, or distributes a vehicle
11 traction battery or a vehicle containing such a battery in or into the state, including vehicle

manufacturers licensed pursuant to applicable state codes or vehicle traction battery
manufacturers that distribute vehicle traction batteries under their own name or brand.

(2) If there is no vehicle manufacturer or primary seller as defined above, the battery
provider is the owner or licensee of a brand or trademark under which the vehicle traction battery
is sold or distributed in or into the state. This includes an exclusive licensee with the exclusive
right to use the trademark or brand in connection with the distribution or sale of vehicle traction
batteries.

(3) If no person or entity meets the criteria in (1) or (2), the battery provider is the
person or entity who imports the vehicle traction battery into the state for sale, distribution, or
installation.

(4) If no other person or entity is designated as the battery provider under (1), (2), or
(3), the distributor, retailer, dealer, or wholesaler that sells or distributes the vehicle traction
battery in or into the state shall be deemed the battery provider.

(5) For the purposes of this definition, the sale of a vehicle traction battery is
considered to occur in the state if the battery, or the vehicle containing the battery, is delivered to
a licensed dealer or directly to the consumer in the state.

A secondary handler who sells, offers for sale, or distributes a vehicle traction battery
within the state shall not be considered a "battery provider."

"Secondary handler" means any entity, other than the battery provider, that takes
possession of a vehicle traction battery to sort, reuse, repair, remanufacture, or prepare the

battery for repurposing by a secondary user or end-of-life management by a specialized battery recycler.

“Secondary user” means an entity that repurposes a vehicle traction battery before ensuring the battery is directed to a specialized battery recycler.

“Specialized battery recycler” means an entity or facility that is authorized by the department or an equivalent agency in another state and performs one or both of the following:

A) Refines end-of-life vehicle traction batteries or battery materials back to useable battery materials.

B) Extracts and separates end-of-life vehicle traction battery materials (e.g., lithium compounds, cobalt, nickel, copper, aluminum, iron, manganese, and graphite) and sends the material for further processing or refining to another specialized battery recycler.

“Specialized battery recycler” does not include entities or facilities that are only engaged in the collection or logistics of moving materials for recycling or whose primary method of processing battery materials is done by smelting.

“End-of-life” means the stage at which a vehicle traction battery is no longer suitable for its primary intended purpose, such as powering a vehicle, and may be evaluated for potential repurposing or recycling. For purposes of this Act, “end-of-life” does not mean that a vehicle traction battery is waste.

“Battery management hierarchy” means the preference to reuse, repair, remanufacture, or repurpose batteries before recycling, and to prioritize recycling over disposal.

"Remanufacture" means any repair or modification to a vehicle traction battery that results in the complete battery, or any battery modules or battery cells thereof, being used for the same purpose or application as the one for which the battery was originally designed.

"Repurpose" means use of a vehicle traction battery, or any battery modules or battery cells thereof, to store and supply electricity in a manner other than its primary intended purpose.

"Reuse" means the use of a vehicle traction battery in another vehicle from the same manufacturer, which does not require modification to the battery.

"Department" means the Department of Environmental Protection.

All vehicle traction batteries in the state shall be managed responsibly at end-of-life, in accordance with this act. Disposal of vehicle traction batteries through landfilling is prohibited.

(b). RESPONSIBILITIES OF BATTERY PROVIDERS

(A) A battery provider shall:

(1) Ensure the end-of-life management of vehicle traction batteries under the following circumstances:

a. If a vehicle traction battery is removed from a vehicle still in service while under warranty, in accordance with state and federal laws.

b. If a vehicle traction battery is offered or returned to the battery provider. For the purposes of this act, "returned to the battery provider" may include directing the battery to a specialized battery recycler designated by the battery provider.

(2) Consider the battery management hierarchy when managing any vehicle traction batteries in their possession.

(3) Coordinate with specialized battery recyclers for the end-of-life management of vehicle traction batteries, including recycling, to ensure compliance with this act.

(B) A battery provider shall not be held liable for remanufactured or repurposed batteries unless they performed the remanufacturing or repurposing or agreed to accept responsibility by contract.

(c). RESPONSIBILITIES OF SECONDARY HANDLERS AND SECONDARY USERS

(A) Upon taking possession of a vehicle traction battery, secondary handlers and secondary users are responsible for end-of-life battery management, including consideration of the battery management hierarchy.

(B) Secondary handlers and secondary users shall coordinate with a specialized battery recycler for end-of-life management, including recycling, to ensure compliance with this act.

(d). DOCUMENTING AND REPORTING

Battery providers, secondary handlers, and secondary users shall submit an annual report to the Department detailing the quantity and type of end-of-life vehicle traction batteries managed in accordance with this act. A specialized battery recycler may submit this report on behalf of any entity for which they have received vehicle traction batteries for end-of-life

management in accordance with this act, provided the report includes all required data from those entities.

Reports should include data on:

(A) The total volume of propulsion batteries managed at end-of-life, including those repurposed or recycled.

(B) The volume of batteries that will be sent to a specialized battery recycler

(C) The recovery rates of lithium, nickel, cobalt, copper, aluminum, and graphite, as applicable.

(e). RESPONSIBILITIES FOR THE DEPARTMENT

A. To implement the provisions of this act, the department shall

(1) review, evaluate, and compare the federal requirements to those established under this act. It shall, if necessary, revise the regulations to ensure compliance with federal standards and to achieve greater efficiency and feasibility.

B. The department is authorized to determine compliance with and enforce the provisions of this act and any rules adopted hereunder as provided by State law.